PROFILER STUDY PREP · SALES STRATEGY

Hithium — IC Sales Playbook

The account executive's working document: where to hunt, the one-call qualification, the objection table, and the Jupiter defense

Prepared 24 August 2026 · **Sources** hithium.profile.json profileVersion 5 · the relationship-web deliverable · the three Industry Guidance analyses · **Companion** hithium-team-lead-playbook.md, which sets the territory strategy
Sourcing Market facts trace to the dossier base and the guidance claims ledgers; analytical reads are labelled as reads · **Classification** Internal — sales strategy

PRESENTATION STYLE — BloombergNEF Research Report, the canonical Profiler export skin. Facts lead, labelled analysis follows, and the two never blur.

Provenance: Phase 4 deliverable of the AIDC program — synthesized from the 88-company Profiler dossier base, `hithium.profile.json` (profileVersion 5, the AIDC lens), the relationship-web deliverable (`hithium-relationship-web.md`), and the three Industry Guidance analyses (`china-policy-stack-analysis.md`, `utility-aidc-procurement-analysis.md`, `bess-bankability-certification-analysis.md`). Internal, never deployed. Companion: `hithium-team-lead-playbook.md`, which sets the territory strategy, the policy calendar, and pipeline standards. Prepared 2026-08-24.

Who this is for: the individual contributor carrying a Hithium US quota. It answers four questions: *who do I call, how do I qualify them in one call, what do I say when they push back, and how do I defend the anchor account.* Market facts trace to the dossier base and the guidance claims ledgers; analytical judgments are labelled as reads.

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1. The market you are selling into — one page

Four federal machines constrain Chinese battery storage in the US, and they are not interchangeable: the **tax lever is decisive** (Hithium is a statutory Specified Foreign Entity by name — NDAA §154(b) is incorporated into the tax code — so a 2026-construction-start BESS built on Hithium cells lands around 34% non-PFE against a 55% MACR floor and loses the **entire** §48E ITC, not an adder); the **tariff lever is survivable** (~40.9% stack on imported lithium-ion storage content as of Aug 2026 — verify before quoting, it moved four times in 2026); the **defense lever is narrow but brands us** (DoD ban from Oct 1, 2027); and the **domestic-content adder was never ours** (a grid-scale BESS maxes ~40% US content without a US-made cell). Conflating these four is the most common seller error — precision about which machine bites is itself a credibility play.

Three lanes are open:

1. **Safe-harbored 2025 starts** — projects that began construction (physical work test or 5% safe harbor, as of Jan 1, 2025 rules) by Dec 31, 2025 are exempt from the MACR test. Finite, depleting, builds through ~2028-29, and the only ITC-compatible Hithium demand. The Jupiter book sits here. **You cannot create new ones.**
2. **Merchant / tax-indifferent buyers** — ERCOT merchant IPPs, BTM, non-taxpaying owners, augmentation, speed-over-subsidy. No ITC in the model means no MACR problem — and because compliant supply now carries a premium, the 2026 rules made Hithium a *better* deal for exactly these buyers.
3. **Non-US** — where none of the stack applies and the current order book already lives (Saudi, Ukraine, APAC, EU). Coordinate with global coverage; don't double-work accounts.

Four doors are closed — do not spend pipeline time behind them: 2026+ construction starts with the ITC in the model; utility self-build programs (prudence/FEOC — Georgia went Tesla, Dominion went EVLO); DoD-adjacent loads (Oct 2027, gray zones with counsel); and FEOC-clean AIDC specifications, where ON.energy's medium-voltage AI UPS — ride-through-certified, FEOC-clean by design, anchored by a 5 GW Crusoe deployment — is setting the category's US terms.

The orienting rule: *sell to the grid, not to the data centre.* The largest storage buildout AI demand causes is utility- and IPP-owned front-of-meter storage judged on duration, cycle life, and price — Hithium's criteria. Hithium does not need to be inside a data centre to be paid by data-centre demand growth.

2. Where to hunt — the channel map

Batteries reach AI-era projects through **owners, not builders**: EPCs install what the owner furnishes. The verified pattern across every EPC dossier is owner-furnished procurement — if you are pitching an EPC for a purchase order, you are in the wrong meeting (but collect the approved-vendor-list intel while you're there).

CHANNEL	WHO SIGNS THE CELL PO	YOUR MOTION	PRIORITY
Merchant ERCOT (IPP-owned)	Developer/IPP procurement	The core lane: economics + availability + augmentation terms; lead with no-remote-access security architecture; respect quiet-buyer discretion	**Primary**
Utility RFP via PPA	The developer bidding the RFP	Bid-stage design-wins — pricing locks the BOM, so engage before the bid; safe-harbored or non-ITC structures only	**Primary (screened)**
Utility self-build	Utility + its EPC (approved-vendor list)	Effectively closed to Chinese cells; monitor, build EPC relationships, don't force	Watch
BtM data-center buffering (NOGRR 282 / SB 6)	DC developer or its power partner	Qualify hard — FEOC-clean specs are the norm; realistic wins are non-US campuses and operators without ITC/FEOC exposure	Selective
Gas-cohort storage attach	The packager (VoltaGrid / ERock / ProEnergy / Mainspring), when sockets fill (~2029+)	No direct motion yet; track through their customers' owners	Watch

CHANNEL	WHO SIGNS THE CELL PO	YOUR MOTION	PRIORITY
Non-US	Developers/utilities without the FEOC constraint	The open field — hand off or coordinate per territory assignment	Per assignment

The Jupiter-pattern account profile

The template for a realistic Hithium account, drawn from the anchor relationship:

- A **merchant or safe-harbored** project book (tax-indifferent capital, or BOC documentation in hand)
- Sophisticated procurement that **buys on economics while messaging domestic content publicly** — the quiet-buyer pattern; they want performance and price, not a co-branded press release
- **Augmentation-aware** — values 11,000-cycle-class cell life and multi-year augmentation economics
- Willing to run **no-remote-access architectures** (Texas LSIPA / NPRR1199 posture)
- Rewards **delivery speed and availability** over subsidy optimization

Anti-pattern: logo-hungry, PR-driven buyers, and anyone whose financing requires a FEOC-compliant supply chain.

3. Qualification — the first-call discovery script

Seven questions, in order. Each one either opens a lane or saves you a quarter of wasted pursuit.

1. **"When did — or will — construction begin, under the tax rules?"** BOC by Dec 31, 2025 (physical work test or 5% safe harbor, Notices 2013-29/2018-59 as of Jan 1, 2025) means MACR-exempt and the ITC survives with our cells. A 2026+ start with the ITC in the model is a closed door. Remember: new safe harbors cannot be created — the 5% test is gone above 1.5 MW AC.
2. **"Is the ITC actually in this project's financial model?"** Separates lane 1 and lane 2 from dead deals in one sentence. Merchant, BTM, and non-taxpaying owners have no MACR problem — and compliant supply now carries a premium they don't need to pay.
3. **"Who picks the cell brand on this project?"** Owner-furnished is the norm. If the answer isn't the person you're talking to, get the introduction — and log the approved-vendor intel regardless.
4. **"What does the rest of your BOM look like?"** Sets up the MACR service (§4). The ratio runs across the direct cost of **all** project equipment — PCS, transformers, switchgear, HVAC, enclosures, controls, balance-of-plant — so a project can clear the 55% floor *while still containing Hithium cells* if the remainder is domestic or allied and the cell share is sized deliberately.
5. **"What are your COD and augmentation plans?"** Augmentation economics are a structural Hithium strength (11,000-cycle-class 314Ah/587Ah). Also your recapture screen: keep post-COD service contracts short and non-exclusive — an exclusive long-term LTSA with a Chinese SFE can make the owner an FIE and claw back a safe-harbored project's entire credit (10-year recapture, tax years beginning after Jul 4, 2027).
6. **"ERCOT? What's your security-architecture posture?"** Texas LSIPA bars Chinese-controlled remote access to grid-connected infrastructure; NPRR1199 requires equipment attestations. Lead with the no-remote-access architecture before they raise it — it converts an objection into a spec you wrote.
7. **"Any DoD adjacency — base-serving load, federal offtake?"** §154 bites Oct 1, 2027; contractor-embedded and utility-PPA-served gray zones await DFARS interpretation. Flag to counsel; never improvise an answer.

Disqualifiers — when to walk

SIGNAL	VERDICT
2026+ construction start with the ITC in the model	Walk. Never assert eligibility — a lost ITC swamps any cell-price delta
Utility self-build program	Redirect effort to the EPC/AVL long game; no near-term PO exists for us
FEOC-clean or domestic-content spec written into the RFP	No-bid
DoD-adjacent load	Counsel first; assume closed post-Oct 2027
Buyer asks us to sign or support a non-PFE certification	Hard stop — never sign, never facilitate (supplier-certification penalties are personal and statutory)
MOU appetite without a conversion path	Log it, don't forecast it. The Samsung C&T lesson: ~10 GWh of cooperation agreement, publicly unconverted 19+ months on

4. The MACR arithmetic — sell the service, concede the limits

The material-assistance cost ratio is (A − B) ÷ A across the direct cost of all manufactured products in the project — not a cells-only test. That arithmetic is the one place the rule that hurts us becomes a service only we are motivated to provide: **arrive with a worked model showing how much Hithium content *their* project can absorb and still clear the floor.** It puts you beside tax counsel — the real gate — as a helper rather than a risk.

Concede the limits yourself, before they do: their counsel owns every number; the floor climbs 55% (2026) → 60% (2027) → 65% (2028) → 70% (2029) → 75% (2030+), so the headroom you're modeling shrinks every January — use it while it is wide; and the certification machinery has teeth (supplier penalties under §6695B, a 1% substantial-understatement trigger, a 6-year statute of limitations), so every BOC representation routes through counsel, always. Treasury's PFE tables are due Dec 31, 2026 — every model gets re-run when they publish.

5. Objection handling

The pattern across all seven: **concede the true part immediately, then answer with structure, not reassurance.** This room has heard the bullish version from every Chinese vendor; the honest version is the differentiator.

OBJECTION	WHAT'S TRUE	YOUR ANSWER
"You're on the NDAA list — FEOC."	§154(b) names Hithium; SFE by name and by organization	It's a tax rule and a DoD-procurement rule, not a commercial ban. Walk them through exactly which machine bites their project and which doesn't — then hand them the MACR model. Precision is the credibility play; never minimize
"Tariffs make you uneconomic."	~40.9% stack on imported content (Aug 2026)	Disclose the stack in the TCO model yourself before they ask. US-assembled systems from Mesquite pay the tariff on cell value only, not the whole container — roughly half the base. Then run TCO, not sticker: cycle life and augmentation terms carry the math

OBJECTION	WHAT'S TRUE	YOUR ANSWER
"Your IPO lapsed twice. Will you exist in year 15?"	A-share withdrawn 2023; two HKEX applications lapsed; margins compressed 17.9% → 13.1% (H1 2025)	Answer structurally, never rhetorically: parent guarantees, warranty insurance/bonding, escrowed spares, availability-LD LTSAs backed by the US entity, named bank references, quantified US fleet performance. BNEF Tier 1 since at least 2Q 2024 — and use that term precisely: a bank-financeability screen, not an award
"CATL is suing you."	Unfair-competition suit, Ningde court, confirmed Jun 2025	A within-lane competitive weapon from the market leader. No injunction affecting deliveries as of Aug 2026 — verify status at call time; route any spec commitment near the 587Ah claims through legal; offer contract-remedy structure (indemnities) rather than argument
"Batteries burn — Moss Landing."	Jan 2025 fire; ~$400M write-off	Different device class: that was NMC in a legacy *indoor* design with suppression deactivated. Modern outdoor LFP containers are priced differently by the insurers themselves ("not a market-moving event"), and industry failure rates per deployed GWh fell ~97-99% 2018→2025 (EPRI's media-derived database — state the caveat). Then produce the 9540A reports at cell, module, and unit level plus large-scale fire-test data
"We need domestic content."	The +10% adder needs 50-55% US manufactured content; a grid-scale BESS maxes ~40% without a US-made cell	Separate the adder from the base credit: no Chinese-cell supplier ever had the adder to lose — the real question is the base ITC, which is the MACR model. Mesquite is auditable non-PFE cost share and tariff-base relief; never claim it makes the cells non-Chinese
"A Chinese BMS in our campus is a security review, not a negotiation."	True as stated — and reported comms hardware in Chinese inverters/batteries is driving FCC action	Lead with the no-remote-access architecture and air-gapped external control as the design, not the concession. SBOM, firmware chain of custody, and remote-access policy sit in the proof pack; in Texas, volunteer the NPRR1199 attestation posture proactively

6. The Jupiter account defense

The dossier read (moderate confidence, and act on it): *the anchor relationship is strong but no longer exclusive-trending — defending it on economics, delivery record, and augmentation terms is the highest-leverage US sales action available.*

The position: the 3 GWh supply deal (2024, ∞Block 5 MWh on 314Ah cells, deliveries through end-2025 — completion not publicly confirmed) plus the Trimount design win (5.015 MWh units, EFSB-approved Feb 2026, revenue years out behind site remediation). The single strongest US reference we own.

The threat: Jupiter's Nov 2025 Peak Energy deal — 720 MWh plus up to 4 GWh reserved — plants a **domestic sodium supplier inside the account on precisely the chemistry Hithium markets as its next act.** This is not churn risk today; it is a second source being groomed on our story.

The five defense plays:

1. **Make renewal a data conversation.** Build the delivery-record file: availability, capacity retention against the warranty curve, augmentation history on the delivered fleet. The incumbent's advantage is a measured fleet; use it.
2. **Price multi-year augmentation now.** Augmentation on the installed base is structurally ours — locking it locks the relationship through the exact years the Peak ramp needs to prove itself.
3. **Tell the sodium counter-story honestly.** We ship sodium today at utility scale — the ∞Cell N162Ah (≥20,000-cycle class) and the ∞Power N 1h system. But never overclaim the AIDC sodium SKU (its mass production is

unconfirmed). The credible line: *"we ship sodium now in one utility SKU; here is the roadmap and what we will commit to in writing."* Overclaiming to this buyer hands the account to Peak.

4. **Service the safe-harbored book.** BOC documentation support and effective-control-clean contracting make us part of Jupiter's tax defense — a switching cost no challenger cell price offsets.
5. **Absolute discretion.** Jupiter messages domestic content publicly while buying on economics. No logos, no case studies, no press without written consent — the day we make them explain us is the day the account opens to bids.

Early-warning indicators — escalate to your lead on any of these: Peak deliveries attributed on Jupiter projects; Jupiter RFQs that begin specifying domestic content; augmentation tenders going to third parties; continued public silence on the 3 GWh completion.

7. The proof pack

What a qualified buyer's diligence will request — carry it before they ask (condensed from the 10-item RFP checklist in the bankability analysis):

1. UL 1973 and UL 9540 listings (NRTL); PCS certification evidence (UL 1741 SB / IEEE 2800)
2. Complete UL 9540A reports at **cell, module, and unit** level — cell-only submissions are a known dodge buyers screen for — plus large-scale fire-test results and deflagration-management design data
3. The NFPA 855 package: HMA support, spacing drawings, gas detection, ERP template, responder training offer
4. UN 38.3 test summaries and DG shipping docs
5. Cycle-life / degradation / RTE data with independent-lab validation
6. Warranty terms (annual SoH table, operating envelope), availability guarantee, LDs, LTSA scope, augmentation plan
7. Counterparty structurals: audited financials, parent guarantees / warranty insurance, bank references, US fleet references
8. Trade/tax file: country-of-origin + HTS docs, MACR/FEOC certifications support (through counsel), recapture indemnity language
9. Quality: pre-shipment inspection and in-line factory-audit rights, FAT/SAT protocols
10. Cyber: EMS/BMS architecture, SBOM, firmware chain of custody, remote-access policy (the no-remote-access variant for Texas)

8. Red lines and vocabulary discipline

Absolute — these are enforced standards, not style preferences:

- **Never assert ITC eligibility** for a 2026+ construction start with Hithium content
- **Never sign or facilitate a non-PFE certification** — hard stop, no exceptions
- **Every BOC representation routes through counsel** — you support with documentation, you never certify
- **Disclose the tariff stack in TCO models** — and date-stamp it (~40.9% as of Aug 2026; it moved four times this year — verify before every quote)
- **Never say "9540A certified."** UL 9540A is a test method with no pass/fail. Say: *"tested at cell, module, and unit level — reports available."*

- **Don't mix ERCOT rule numbers:** NOGRR 282 is *data-center load* ride-through; the storage rules are NOGRR 245 and 272. Mixing them in an ERCOT room costs you the technical audience
- **"BNEF Tier 1" is a bank-financeability screen** — never present it as a quality award
- **Never claim Mesquite fixes FEOC or MACR.** Hithium US is a Foreign-Influenced Entity; Mesquite output counts as PFE-made. It is a tariff-base, logistics, and auditable-content-share story — nothing more
- **Never claim we're "cheaper than Tesla" where the ITC applies** — the lost credit swamps any cell delta, and the room knows it
- **Quiet-buyer discretion is absolute** — no account names in any external material without written consent
- **Keep post-COD service contracts short and non-exclusive** — recapture protection for the customer is relationship protection for us

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